

25STCV28689 25STCV28689

County: los-angeles

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Case Number: 25STCV28689 Hearing Date: June 29, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:38 PM on June 25, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 26, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of

intention to appear is not given.

Plaintiff alleges that she was employed

as an onsite community manager for Defendant's apartment building, and received

subsidized rent. Plaintiff alleges that she became pregnant and after she complained

about black mold in her unit, Defendant retaliated against her and harassed her

on the basis of her pregnancy.

Defendant Jones & Jones Management
Group, Inc. moves to compel arbitration.

TENTATIVE RULING

The hearing on Defendant Jones & Jones Management Group, Inc.'s motion to compel arbitration is CONTINUED to July 29, 2026 at 8:30 a.m. for submission of supplemental briefs and declarations regarding whether the FAA applies to the subject arbitration agreement. Defendant's supplemental brief/evidence is due July 10, 2026. Plaintiff's supplemental opposition/evidence is due July 20, 2026. Defendant's reply brief (no new evidence) is due July 24, 2026.

ANALYSIS

Motion To Compel Arbitration and Stay Action

The
Court has reviewed the moving, opposing and reply briefs filed by the parties.

Defendant Jones & Jones Management
Group, Inc. moves to compel arbitration.

Plaintiff argues that under the federal
Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA")
applies.

Pursuant to Code of Civil Procedure section 1281.2, "[o]n petition
of a party to an arbitration agreement alleging the existence of a written agreement
to arbitrate a controversy and that a party to the agreement refuses to arbitrate
that controversy, the court shall order the petitioner and the respondent to arbitrate
the controversy if it determines that an agreement to arbitrate the controversy
exists"

"The trial court may resolve
motions to compel arbitration in summary proceedings, in which ... "the trial court
sits as a trier of fact, weighing all the affidavits, declarations, and other documentary
evidence, as well as oral testimony received at the court's discretion, to reach
a final determination.""" (Citation omitted..) The party seeking to compel arbitration
bears the burden of proving the existence of an arbitration agreement, and the party
opposing arbitration bears the burden of proving any defense. (Citations omitted.)

. . .

The FAA provides that agreements to arbitrate “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract or as otherwise provided in [the EFAA].” (9 U.S.C. § 2.) Historically, courts have broadly applied the FAA’s mandate to enforce arbitration agreements, explaining that “[a]ny doubts concerning the scope of arbitrable issues should be resolved in favor of arbitration.” (Citations omitted.)

In 2022, Congress amended the FAA by adopting the EFAA. In relevant part, the EFAA provides: “Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402(a).) A “sexual harassment dispute” is “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (Id., § 401(4).) A “sexual assault dispute” is “a dispute involving a nonconsensual sexual act or sexual contact, as such terms are defined in section 2246 of title 18 or similar applicable Tribal or State law.” (9 U.S.C. § 401(3).)

(Doe v. Second Street Corp.
(2024) 105 Cal.App.5th 552, 563-65 [bold emphasis added].)

This matter requires that we determine whether the EFAA exempts from arbitration all causes of action in a complaint that asserts both sexual harassment and nonsexual harassment claims, or whether a trial court may still compel arbitration of the nonsexual harassment claims. . . .

We agree with our colleagues in Division Three of this appellate district, who recently concluded in Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552 . . . that the plain language of the EFAA exempts a plaintiff’s entire case from arbitration where the plaintiff asserts at least one sexual harassment claim subject to the act. Here, at least one of Liu’s claims is subject to the EFAA, and thus the trial court did not err in refusing to compel Liu to arbitrate any of her claims.

(Liu v. Miniso Depot CA, Inc.

(2024) 105 Cal.App.5th 791, 795-96 [bold emphasis added].)

Miniso's sole appellate contention is that the trial court erred in concluding the parties' arbitration agreement was unenforceable as to all of Liu's claims, and not just as to the two harassment claims. In other words, Miniso contends the trial court should have compelled Liu to arbitrate all of her claims except for the two harassment claims. We disagree. Under the EFAA, when a plaintiff's lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit.

.
. .

Thus, under the EFAA, Liu may not be compelled to arbitrate any of her claims because the "case" she filed under state law (her superior court lawsuit) "relates to ... the sexual harassment dispute" in that her complaint contains claims premised on conduct that is alleged to constitute sexual harassment under state law.

(Liu, *supra*, 105 Cal.App.5th at 800, 803.)

However,
the parties have not sufficiently briefed whether the Federal Arbitration Act ("FAA") applies to the subject arbitration agreement.

Applying *New Prime*, a court must ensure that a dispute lies within section 2 of the FAA before compelling arbitration. Otherwise, courts cannot determine whether an agreement to arbitrate is "valid, irrevocable, and enforceable"; such enforceability is contingent on the agreement not being subject to revocation under existing law or in equity "or as otherwise provided in chapter 4 [i.e., the EFAA]." (9 U.S.C. § 2.) Because the EFAA creates an express statutory exception to section 2's enforcement mandate, courts necessarily must consider its applicability. (See *Olivieri v. Stifel, Nicolaus & Company, Incorporated* (2d Cir. 2024) 112 F.4th 74, 84 ["The EFAA is codified directly into the FAA and limits the scope of [the FAA's] broad mandate to enforce arbitration agreements."]; see also, e.g., *Grajales-El v. Amazon Prime* (3d Cir., Aug. 29, 2024, No. 23-2984) 2024 WL 3983335, p. *1 ["before the District Court invoked its power under the FAA to compel arbitration, it was required to first determine whether that power is limited by § 1's 'contracts of employment' exclusion."].) And, as indicated in *New Prime*,

courts must address such threshold issues whether or not they have been specifically raised by a party.

(Quilala v. Securitas Security Services USA, Inc. (2025)
117 Cal.App.5th 75, 84 [bold emphasis and underlining added].)

Initially, we consider whether the evidence in this case shows a sufficient indicia of interstate commerce for the EFAA to apply to the parties' transaction. We do so because the EFAA, as part of the FAA, was enacted under Congress's authority under the commerce clause and extends to contracts that "involv[e] commerce." (9 U.S.C. § 2.) Because the FAA's reach coincides with that of the commerce clause, the statute "applies not only to the actual physical interstate shipment of goods but also contracts relating to interstate commerce." (Basura v. U.S. Home Corp. (2002) 98 Cal.App.4th 1205, 1213–1214, 120 Cal.Rptr.2d 328 (Basura).)

(Casey v. Superior Ct. (2025)
108 Cal.App.5th 575, 583.)

Here,
the Complaint does not plead an obvious contract relating to interstate commerce, as it involved Plaintiff employment by Defendant as an onsite community manager at Casa de Marina Apartments in Los Angeles, where Plaintiff lived. (Complaint, ¶ 10.)

11. As an onsite Community Manager, Plaintiff's job duties included managing the day-to-day operations, serving as the primary point of contact for residents, and ensuring the property was well maintained. Plaintiff was also responsible for ensuring rents were timely collected, managing tenant relations, coordinating maintenance and repairs, and enforcing lease agreements. Additionally, Plaintiff had to market vacancies, screen new tenants, and deliver three-day notices, —the initiation of the eviction process.

(Complaint, ¶ 11.)

Moreover,
the Arbitration Agreement—attached as Exhibit A to the Declaration of Seta Sefer—does not expressly state that the FAA applies to its provisions:

The FAA applies
to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration

is a matter of contract, the FAA also applies if it is so stated in the agreement.

(See *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 [260 Cal. Rptr. 3d 1].)

(*Barrera v. Apple American Group LLC* (2023)

95 Cal.App.5th 63, 76.)

The significance

of whether the FAA, and thus potentially the EFAA, applies in this case is the linchpin

of the motion: the Court agrees with Plaintiff

that if the EFAA applies, Plaintiff would be entitled to avoid arbitration.

Plaintiff has only pled the sex/pregnancy-based

harassment against Defendant in its capacity as employer, not as owner/manager of

the apartment where Plaintiff lives. As such, harassment with respect to housing

accommodation^[1] is not part

of Plaintiff's case. See, Complaint, Second Cause of Action (Hostile Work

Environment Harassment Based on Sex and Pregnancy Govt. Code §§12923,^[2] 12940

(j))

¶¶ 39, 40:

39. The FEHA makes it unlawful

for an employer to harass any person because of that person's sex, pregnancy,

and subject the employee to a hostile environment that denies the employee the benefits

of her employment. The FEHA makes an employer strictly liable for the

sex/pregnancy harassment perpetrated by a supervisor and for the failure to prevent

such harassment.

40. Defendants are liable

for harassment, which included, but was not limited to:

- Failing to accommodate

Plaintiff's pregnancy-caused disabilities.

- Reprimanding Plaintiff,

accusing her of falsification, and threatening her with termination.

- Manufacturing a policy

violation from a companywide practice of permitting employees other than

managers from posting three-day notices.

41. Jones & Jones'

conduct was motivated by hostility towards Plaintiff because of her sex and pregnancy, and pregnancy-caused disabilities, creating a hostile work environment.

For the purposes of

the relevant provisions of the FEHA, " 'harassment' because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions." (Id., § 12940, subd. (j)(4)(C).)

. . .

Past California decisions have established

that the prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex. (Citations omitted.) Such a hostile environment may be created even if the plaintiff never is subjected to sexual advances. (Citation omitted.) In one case, for example, a cause of action based upon a hostile environment was stated when the plaintiff alleged she had been subjected to long-standing ridicule, insult, threats, and especially exacting work requirements by male coworkers who evidently resented a female employee's entry into a position in law enforcement. (Citation omitted.)

(Miller v. Department of Corrections (2005) 36 Cal.4th 446, 461-462 [bold emphasis and underlining added].)

"[T]he prohibition against sexual harassment includes protection from a broad range of conduct, [including] the creation of a work environment that is hostile or abusive on the basis of sex." (Citation omitted.) "[A] plaintiff in a sexual harassment suit must show 'the conduct at issue was not merely tinged with offensive sexual connotations, but actually constituted "discrimina[tion] ... because of ... sex.'" (Id. at p. 280, italics omitted.) "'To plead a cause of action for ... sexual harassment, it is "only necessary to show that gender is a substantial factor in the discrimination, and that if the plaintiff 'had been a man [or a woman, he or] she would not have been treated in the same manner.'" [Citation.]' [Citations.] Accordingly, it is the disparate treatment of an employee on the basis of sex—not the mere discussion of sex

or use of vulgar language—that is the essence of a sexual harassment claim.”

(Ibid.)

(Kruitbosch v. Bakersfield Recovery Services, Inc. (2025)

114 Cal.App.5th 200, 211 [bold emphasis and underlining added].)

Here, Plaintiff

pleads a situation where her employer is also the manager of her residential unit.

As such, her concern about toxic mold exposure at her unit during her pregnancy and insistence that the mold be properly remediated by a licensed professional could provide cross-over motivation for her employer to harass Plaintiff relative to her employment:

16. On November 10, 2023, while preparing her unit for a roach clear-out due to an infestation in the building, Plaintiff discovered black mold in her bedroom closet. Plaintiff informed Defendant. Under Defendant’s procedures, maintenance was scheduled to remediate the mold.

17. Plaintiff became concerned about the mold exposure and its impact on the health of her unborn child. She called a mold remediation company and spoke with a mold inspector. The mold inspector confirmed that black mold was toxic and should be treated by a licensed professional. He recommended Plaintiff move out during the mold treatment. After the mold inspector explained the process mandated to treat black mold, Plaintiff knew that the Defendant’s standard practice of cleaning the mold with bleach and only replacing the mold infected part of the dry wall when a tenant insisted, was inadequate and unsafe.

18. Plaintiff reported her conversation with the mold inspector to Larissa Gilbert and Eliza Novotney. She told them that, per regulations, only a licensed professional was supposed to treat the mold and asked Defendant to have the mold treated by a licensed professional.

...

20. Five days after[] Plaintiff reported her conversation with the mold inspector, she was reprimanded and accused of “Not following policies and procedures, substandard job performance and job neglect” for assigning the leasing agent to post a three-day notice to pay or quit, a practice followed by other managers.

21. Plaintiff responded stating that she was never told that only managers were permitted to post “three-day notices.” Plaintiff explained that she had intended to post the notice but asked the leasing agent for help because she was having health issues related to her pregnancy.

22. Instead of investigating Plaintiff’s response, knowing that Plaintiff was experiencing a high risk pregnancy and in possession of a physician’s request for modified duty, Defendant accused Plaintiff of “falsifying” documents, causing them financial losses, and threatened her with job termination.

(Complaint, ¶¶ 16 – 18, 20 – 22 [bold emphasis and underlining added].)

As such, the Court finds that Plaintiff asserts a claim for harassment based on sex, i.e., pregnancy. That is, Plaintiff alleges disparate treatment at work which she would not have experienced if she were a man, i.e., due to her pregnancy. (Kruitbosch, supra, 114 Cal.App.5th at 211.) In this regard, if the FAA and EFAA applies, then Defendant is not entitled to enforce the arbitration agreement against Plaintiff as to any claim raised in the Complaint. (Liu, supra, 105 Cal.App.5th at 795-96 [bold emphasis added].)

The hearing is CONTINUED to July 29, 2026 at 8:30 a.m. for submission of supplemental briefs and declarations regarding whether the FAA applies to the subject arbitration agreement. Defendant’s supplemental brief/evidence is due July 10, 2026. Plaintiff’s supplemental opposition/evidence is due July 20, 2026. Defendant’s reply brief (no new evidence) is due July 24, 2026.

[1] Gov. Code § 12955(a) provides:

It shall be unlawful:

(a) For the owner of any housing accommodation to discriminate against or harass any person because of the race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, source of income, disability, veteran or military status, or genetic information

of that person.

(Gov. Code § 12955(a).)

[2]

The Legislature hereby declares its intent with regard to application of the laws about harassment contained in this part.

(a) The purpose of these laws is to provide all Californians with an equal opportunity to succeed in the workplace and should be applied accordingly by the courts. The Legislature hereby declares that harassment creates a hostile, offensive, oppressive, or intimidating work environment and deprives victims of their statutory right to work in a place free of discrimination when the harassing conduct sufficiently offends, humiliates, distresses, or intrudes upon its victim, so as to disrupt the victim's emotional tranquility in the workplace, affect the victim's ability to perform the job as usual, or otherwise interfere with and undermine the victim's personal sense of well-being. In this regard, the Legislature affirms its approval of the standard set forth by Justice Ruth Bader Ginsburg in her concurrence in *Harris v. Forklift Systems* (1993) 510 U.S. 17 that in a workplace harassment suit "the plaintiff need not prove that his or her tangible productivity has declined as a result of the harassment. It suffices to prove that a reasonable person subjected to the discriminatory conduct would find, as the plaintiff did, that the harassment so altered working conditions as to make it more difficult to do the job." (Id. at 26).

(Gov. Code § 12923(a)[bold emphasis added].)